General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 General Election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

Constitutional Amendment 2

PROPOSING TO AMEND ARTICLE 7, SECTION 1 OF THE CONSTITUTION OF NEW MEXICO TO REMOVE THE REQUIREMENT THAT SCHOOL ELECTIONS BE SEPARATE FROM PARTISAN ELECTIONS.

For: _____ Against: _____

Purpose

Constitutional Amendment 2, passed by the legislature in 2026, would amend Article 7, Section 1 of the Constitution of New Mexico to remove the requirement that school elections be held separately from partisan elections. If the amendment is approved, school districts would have the opportunity to add bond and mill levy questions to ballots in a partisan election such as the regular general election. It would also give the legislature the authority to allow local school board elections to be held with partisan elections.

Arguments For

1. **School districts will save the cost of expensive all-mail ballots.**

The only statewide election that a school district may participate in is the regular local election held in November of odd-numbered years at which nonpartisan local governing bodies, including many municipalities, hold their elections. That means that school districts must pay for a special mail ballot election if they need to get approval on a bond or mill levy question at any other time during the two-year election cycle. School districts use school funding to pay for the required, expensive all-mail ballots. A special election can cost between $125,000 to $250,000, depending on the size of the district and the number of issues. Constitutional Amendment 2 would allow school districts the option of placing a bond or mill levy question on the general election ballot in November of even-numbered years, just as local governments are allowed to do under current law, saving the cost of all-mail ballots.

2. **More participation in school elections.**

Allowing school districts to place a bond or mill levy question on a partisan general election ballot would increase the number of voters who participate in school elections, given that participation rates for statewide general elections tend to be much higher than participation rates for statewide local elections.

3. **The amendment may increase school districts' participation in the state's public school capital outlay system and result in more new or renovated schools for New Mexico students.**

The public school capital outlay system was designed to ensure the uniformity and sufficiency of all public school facilities in the state. New school buildings, building renovations and other capital projects that are authorized through this system are funded by the state and school districts through an equitable cost-sharing model. School districts generally cover their share of project costs through bonding and property taxes approved by voters; however, some school districts are unable to get bonding or property taxes approved and cannot afford their share of project costs. Because partisan elections have higher and more diverse voter turnout than nonpartisan or special elections, school district ballot questions for bonding or property taxes may be more likely to pass, potentially resulting in increased school district participation in the public school capital outlay system and more new or renovated school buildings for New Mexico students.

4. **School districts maintain the choice of holding a special election.**

School districts are currently the only public bodies that are prohibited from holding elections at the same time as partisan elections. Constitutional Amendment 2 does not require that school elections occur simultaneously with partisan elections; rather, it provides the option and flexibility for school districts to decide the timing of their elections to better suit their needs. School districts may still choose to hold special bond elections, but that will no longer be their only option to have bond or mill levy questions on the ballot outside of the biennial statewide local election.

5. **Dilutes the outsized influence of education interest groups in deciding school governance.**

Off-cycle school board elections systematically give an advantage to whichever group is best organized and most motivated to turn out the vote. Education interest groups have leveraged this advantage to elect school board members favorable to their priorities. Folding school elections into the November general election, where voter turnout routinely triples or quadruples that of standalone school elections, would ensure that outcomes reflect the preferences of the full electorate, including parents, taxpayers and other community members who often sit out low-profile, off-cycle contests.

Arguments Against

1. **Adding school questions to the general election ballot could create voter fatigue and increased costs.**

Adding another ballot question to the general election ballot or allowing the possibility of a future legislature adding school board elections to the general election ballot may cause general election ballots in some counties to exceed two full pages, resulting in voter fatigue and increased costs for producing general election ballots.

2. **The amendment may lead to politicizing school district elections.**

Voters overwhelmingly approved the prohibition on holding school elections with partisan elections in 2008. This prohibition was enshrined in the Constitution of New Mexico, thus preventing the legislature or local public

bodies from allowing school elections to be held with partisan elections. While Constitutional Amendment 2 only removes the prohibition and does not affirmatively require that school elections be held with partisan elections, it does not limit the legislature's ability to pass future legislation amending the Election Code to allow school board elections to be held with partisan elections. By remaining silent on that issue, Constitutional Amendment 2 may open up school elections to increased political influence. Alternatively, school district bond and mill levy elections could be held with general elections while maintaining the prohibition on holding actual school board elections with partisan elections.

3. **Reduces the impact and voting power of experts most familiar with education interests.**

Characterizing interest group influence in off-cycle school board elections as a problem to be solved through this amendment fundamentally misunderstands what democratic participation looks like in specialized, interest-specific elections. Teachers, school staff and the education associations that represent them are among the most directly affected stakeholders in school governance decisions, and the higher rate of participation in school elections from these experts is not a distortion of democracy. Moving school issues onto the general election ballot does not necessarily create a more informed electorate but rather a larger one that may know less about school issues or the need for bonds or local mill levies relative to the people with a day-to-day understanding of the operational, facilities and other needs in local schools.

4. **<u>School elections will be diminished in general elections.</u>**

The importance of school issues on a partisan general election ballot may be diminished by the attention provided to candidates for higher office such as the governor, state representative, state senator, the United States presidency and Congress. More information is provided by the media, advocates and opponents on such races so voters may be less informed about local school issues and sometimes ignore down-ballot races and bond questions.

Full Text of Legislation

Note:
<u>Underscored Material</u> = new language proposed for insertion
[Bracketed material] = existing language proposed for deletion

SENATE JOINT RESOLUTION 1 - Proposed Constitutional Amendment 2

PROPOSING TO AMEND ARTICLE 7, SECTION 1 OF THE CONSTITUTION OF NEW MEXICO TO REMOVE THE REQUIREMENT THAT SCHOOL ELECTIONS BE SEPARATE FROM PARTISAN ELECTIONS.

BE IT RESOLVED BY THE LEGISLATURE OF THE STATE OF NEW MEXICO:

SECTION 1. It is proposed to amend Article 7, Section 1 of the constitution of New Mexico to read:

"A. Every person who is a qualified elector pursuant to the constitution and laws of the United States and a citizen thereof shall be qualified to vote in all elections

in New Mexico, subject to residency and registration requirements provided by law, except as restricted by statute either by reason of criminal conviction for a felony or by reason of mental incapacity, being limited only to those persons who are unable to mark their ballot and who are concurrently also unable to communicate their voting preference. The legislature may enact laws providing for absentee voting by qualified electors. [~~All school elections shall be held at different times from partisan elections.~~]

B. The legislature shall have the power to require the registration of the qualified electors as a requisite for voting and shall regulate the manner, time and places of voting. The legislature shall enact such laws as will secure the secrecy of the ballot and the purity of elections and guard against the abuse of elective franchise. Not more than two members of the board of registration and not more than two judges of election shall belong to the same political party at the time of their appointment."

SECTION 2. The amendment proposed by this resolution shall be submitted to the people for their approval or rejection at the next general election or at any special election prior to that date that may be called for that purpose.